

**PETITION TO SEAL EVICTION RECORD
PURSUANT TO G.L. c. 239, § 16**



**MASSACHUSETTS
TRIAL COURT**

DOCKET NUMBER

COURT DEPARTMENT

COURT DIVISION/COUNTY

PLAINTIFF DEFENDANT
(Landlord/Lessor/Owner)

DEFENDANT
(Tenant/Occupant)

Pursuant to G.L. c. 239, § 16, I certify and affirm that final judgment has entered in the above-referenced eviction case. It was disposed in the following manner and all rights to appeal have expired. I therefore request that this Court seal all paper and electronic court records of this eviction case.

CASE DISPOSITION (RESULT)

The result of the eviction case was one of the following. (*Check only one of the following case dispositions (results).*)

- ☐ This eviction case was dismissed. (*Skip to **INFORMATION AND SIGNATURE** section.*)
G.L. c. 239, §16(e½)
- ☐ This eviction case resulted in a judgment in my favor. (*Skip to **INFORMATION AND SIGNATURE** section.*)
G.L. c. 239, §16(e½)
- ☐ This eviction case resulted in a judgment against me. G.L. c. 239, §16(b)(c)(d)(e)&(k). (*Continue below.*)

REASON

This eviction case was brought for the following reason: (*check only one reason (A – E) and confirm that the options below have been satisfied*).

- ☐ A. This eviction case was for nonpayment of rent, and I paid all amounts due in the judgment/agreement (G.L. c. 239, §16(k)); and
- ☐ The landlord filed a notice of satisfaction with the court; or
- ☐ A judge decided in writing that the amount of rent due was paid. (*A judge allowed my 'Petition for Judgment or Agreement to be deemed Satisfied', meaning the amount of rent due was paid.*)
- ☐ B. This eviction case was for nonpayment of rent, and I have not paid the rent due (G.L. c. 239, §16(c)); and
- ☐ I was not able to pay the full amount of judgment because of economic hardship. It has been at least 4 years since all rights of appeal have exhausted; and no nonpayment eviction or lessor action was brought against me in Massachusetts in the last 4 years before this request.
- ☐ C. This eviction case was for fault (G.L. c. 239, §16(d)); and
- ☐ It has been at least 7 years since all rights of appeal have exhausted, and no other fault action or lessor action was brought against me in Massachusetts in the last 7 years before this request.
- ☐ D. This eviction case was for no fault and all rights of appeal have exhausted (G.L. c. 239, §16(b)).
- ☐ E. This eviction case was a civil action under G.L. c. 139, §19 and judgment entered for the landlord (G.L. c. 239, §16(e)); and
- ☐ It has been at least 7 years since all rights of appeal have exhausted; no G.L. c. 139, §19 or fault action was brought against me in Massachusetts in the 7 years before this request; and I have not been convicted of any criminal offense listed in G.L. c. 139, §19 during that time.



NOTICE

You must give notice to the parties to the original action, or their attorney(s), **unless** the eviction case was dismissed or judgment was entered in your favor.

I gave notice to: ☐ the plaintiff ☐ the plaintiff's lawyer ☐ the defendant(s)

I hereby certify that on this date _____ a true copy of this document was served by:

☐ First class mail, to this mailing address:

☐ In person

☐ E-Mail, to this e-mail address:

PETITIONER'S INFORMATION AND SIGNATURE FOR THIS PETITION

I declare under the penalties of perjury that the information provided in this petition is true and accurate to the best of my knowledge.

Name:

Signature:

Date:

Address:

Mobile Phone Number:

Email Address:

☐ This petition was prepared with the assistance of counsel in accordance with Trial Court Rule XVI.

PETITIONER'S LAWYER'S INFORMATION AND SIGNATURE

Lawyer's Name:

Signature:

Date:

Email Address:

BBO# (For lawyers only):

IMPORTANT: An applicant for housing or credit with a sealed record on file with the court pursuant to section 16 of chapter 239 of the General Laws may answer 'no record' to an inquiry relative to that sealed court record.

